Privacy Policy

Our privacy commitment

In support of Prodigy Education's mission to help every student in the world love learning, we are committed to protecting the privacy of our Users and providing a safe, online learning environment. Prodigy is committed to only collecting from Student Users of Prodigy's games, such as Prodigy Math and Prodigy English ("Game" or "Games"), the information needed to individualize the student's learning, enable progress monitoring for parents and

teachers, and optimize the Game experience.

Prodigy does not permit third-party advertising in our Games, and Prodigy does not sell, lease, or otherwise trade for value any personal information of Student Users. Student User information is only used to provide and improve our services.

This Privacy Policy describes the way in which Prodigy Education Inc. (“Prodigy,” “we” or “us”) collects, uses, discloses, and safeguards personal information provided to us by students, parents, guardians, teachers and others (collectively “Users” or “you”) when they play our Games or use our website, downloadable apps, or other services we

provide at prodigygame.com or any other location that links to this Privacy Policy (collectively referred to as the "Services").

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1. Types of User information we collect

We and our service providers collect information when Users visit our website or create an account to use the Services. The types of information we collect vary depending on the type of User who engages the Services, including:

- **“Parent Users” or “Parents” (including parents and guardians of Student Users).**
- **“Student Users” or “Students” (a child and/or student who uses the Services).**
- **“Teacher Users” or “Teachers” (a teacher, administrator, or other school official that opens a teacher**

account to use the Services, including those with the ability to add Student User accounts).

A Student User account can be linked to one or more Parent Users or Teacher Users in order to facilitate a continuous learning journey for that Student User both in and outside of the classroom. Any Parent or Teacher Users linked to that Student User account will have access to the information in that account, including activity recorded both in and outside of the classroom.

More information on each type of account can be found in our Terms of Use.

We may also draw inferences from the information we collect.

Information Collected from Users

We collect information from Users when they send it to us. For example, when you purchase a product or service, sign up to receive our newsletter, or otherwise contact us with a customer support question, chat, comment, or request, we may collect and use the information you provide.

If you submit any information relating to other people in connection with your use of the Services, you represent that you have the authority to do so and you permit Prodigy to use and disclose the information in

accordance with this Privacy Policy.

Student Users

We collect information about Student Users when the Student creates an account directly with us or when the Student User account is created by a Parent or Teacher. We are committed to collecting the minimum amount of information about Students as is needed to operate the Services.

When a Prodigy Student User account is created, we collect the Student's:

- **First name**
- **Last initial**
- **Location (country, state or province)**
- **Grade**

- **Password.**

If a Student has a class code from their Teacher (an alphanumeric code unique to a Teacher), the Student will use that code to connect with their Teacher in the Game. In that case, Prodigy may also obtain the name of the Student's Teacher, school, and/or school district.

Students are assigned a unique username based on their first name, last initial, and an assigned number, which is used to log in but is not visible to other Users except for that Student's linked Parents and/or Teachers. The student then selects a fictional avatar name and appearance from a list of options (e.g., "Billy Summerwalker"), which are the

only ways that users are differentiated within the Game, although these avatar names and appearances are not unique (i.e., there can be multiple Users who choose the name “Billy Summerwalker”).

Parent Users

When registering with Prodigy, Parent Users are asked to provide personal information, including but not limited to their first and last name, email address, city, state/province, and a password for their account. Prodigy may also collect information regarding Student Users associated with Parents for purposes of linking the Student and Parent accounts.

For Parent Users with a paid membership, we may also collect payment information. Note, Prodigy does NOT directly store credit card information — all credit card information and transactions are stored by our third-party payment providers, such as Stripe or the app store through which you purchased your membership.

Teacher Users

Teacher Users, which includes other school officials such as school or district administrators, are asked to provide personal information when registering for a Prodigy Teacher Account, such as first and last name, email address, telephone number, city, state/province, a password for

their account, school, school district, grade level, and/or curriculum (e.g., Common Core Math Standards).

Users with Teacher Accounts may also become eligible to join the Prodigy Champions Club. When a Teacher creates a Champions Club account, the User provides their full name, email address, and a password for their account. The Teacher may also voluntarily provide their job title, school name, country, and a profile photo in order to allow them to maintain a more detailed profile.

Information Collected from Devices and Use of the Services

Performance Data

As Students play Prodigy Games or use other Prodigy Services, we collect information on the features they interact with, math or language skills they encounter, and questions answered ("Performance Data"). This information could include, but is not limited to, data on which activities a Student completes, the number of questions answered correctly or incorrectly, where the Student is in the curriculum, and time taken to answer questions. As described further in the next section, we use Performance Data to customize a Student's educational experience. Where a Teacher or Parent is linked to a Student, select components of a Student's Performance Data are reported to that Teacher and/or Parent to allow for monitoring

of the Student's progress and to customize the Student's educational experience.

Device Data and Information Collected by Technology (e.g., Cookies)

Like most websites and online services, Prodigy and our third-party providers automatically collect certain technical information from your computer or mobile device over time and across different websites when you use the Services, such as your IP address, your browser type, your operating system, the pages you view on the Services, the pages you view immediately before and after you access the Services, and other information about your use of the Services. All of this

information may be collected through use of “cookies,” which are small text files that the Services save on your computer using your web browser and access when you return, and other similar technologies, like “pixel tags,” which are pieces of code placed on a web page that can collect information about whether a User has been to a certain web page or clicked on a specific advertisement.

The information collected through these technologies includes information about the way you arrive at and use our Services, including the pages you visit, the links you click, how frequently you access the Services, or whether you open emails or click links contained in the emails we send you. It

also includes information about high-level geographic location, such as a User's state or region as approximated by the User's IP address, for reasons such as associating a User with the appropriate curriculum, product improvement, and sending locally relevant marketing communications to Parent and Teacher Users. We and our third-party providers also collect analytics data, for example through the use of tools such as Google Analytics, to measure traffic and usage trends for the website and to understand more about the demographics and behaviors of our Users. We also use third-party advertising providers to collect information about Parent Users and Teacher Users who visit areas of the Services that are not directed to

Student Users. This includes information used to deliver interest-based advertising to Parent and Teacher Users, including advertising for our Services, when those Users visit third-party websites, and provide us with statistics about the effectiveness of our advertising on third-party websites.

We and our third-party providers may use the information collected through these technologies for the purposes described in this Privacy Policy, including delivering content, analyzing our Users' experience on the Services, and delivering advertising to Parents and Teachers when they visit other websites and applications. Cookies and these other

technologies placed within the Prodigy Game or within other areas of the Services directed to Students will be used only in support of the Services' internal operations, like providing access to the Games and their features, individualizing content, and improving and optimizing the Services. We do not allow third-party targeted advertising providers to collect information from the Student-directed portions of the Services.

Information from Third Parties

We may obtain information about you or your use of the Services from third parties and sources, such as our vendors, like single sign-on providers you can use to log into the

Services, web hosting providers, analytics providers, or advertisers. In certain circumstances, you may give us permission to access your information from some of these services offered by third parties. The information we obtain from third-party services depends on your account/privacy settings with those third parties and the third parties' privacy policies. You are responsible for reviewing the privacy policies of these third parties and adjusting your settings to meet your preferences. When you access the Services through third-party platforms, you are authorizing us to collect, store, and use such information and content in accordance with this Privacy Policy. Please keep in mind that any information provided to us

by a third party may also be subject to that third party's privacy policy.

2. How we use User information

How We Use Parent and Teacher User Information

We use the Parent and Teacher information we collect for the following purposes:

- **To allow Parents and Teachers to register for and use the Services, such as when you securely log into your portal, to send a communication about a Student's progress or account, or provide feedback to us. For**

confidentiality purposes, information about a Student is only provided to a Parent and/or Teacher linked to that Student's account.

- **To analyze and provide progress reports to Parents and Teachers on linked Student User accounts.**
- **To process payments. NOTE: Prodigy does NOT directly store credit card information — such information is stored by our third-party payment providers, such as Stripe or the app store through which you purchased our membership.**
- **To communicate with Parents and Teachers**

regarding your account, including providing information about changes to the Terms of Use, updates regarding our Services, security alerts, communication about your linked Student's progress or account, or responses to customer support questions.

- **To send marketing communications of potential interest to Parents and Teachers. You can choose to stop receiving marketing emails from us by following the instructions contained in these emails.**
- **To deliver, tailor, and measure the effectiveness of**

advertising to Parents and Teachers. For example, when Parents or Teachers visit third-party websites and applications, our third-party providers may deliver Prodigy ads based on visits to areas of the Services that are not directed to Students.

How We Use Student User Information

We use the Student User information we collect for the following purposes:

- **To measure a Student's progress and performance and provide associated**

reports to Parent and Teacher Users.

- **To adapt, personalize, and customize the Student User experience to the Student's learning needs.**

While advertisements are delivered by Prodigy to Students through the Game, these advertisements are first-party and contextual: that is, advertisements are only for Prodigy's Services, and the same advertisement is delivered to similarly-situated Students based on their progress in the Game or on similar factors that apply to all Student Users. Prodigy does not use personal information collected from Students to individually target this

advertising, and does not allow third-party targeted advertising providers to place cookies on or collect information from the Game or other areas of the Services directed to Students.

How We Use All User Information

We use all User information we collect for the following purposes:

- **To monitor, maintain, analyze and improve the functionality of the Services.**
- **To assess and improve the Services and its educational content, and to improve the user experience.**
- **As we believe to be necessary and**

appropriate to comply with applicable laws and regulations; to comply with legal process; to respond to requests from governmental authorities; to detect violations of and enforce our Terms of Use; to protect the security of the Services; to protect the rights, privacy, property, or safety of Prodigy, you, or others; and to allow us to pursue any available remedies or to limit damages that we may sustain.

De-Identified or Aggregated Information

From the information collected through the Services, Prodigy may create de-identified or aggregated data. What this means is we remove certain identifiers and delineative features of the data collected that make it personally identifiable to a particular User so that it no longer allows a User to be directly or indirectly identified. We may use or disclose such de-identified or aggregated data for lawful and legitimate business purposes, including to analyze, build and improve the Services and promote our business. When we disclose such information, it will not be disclosed in a way that could be used to identify a User.

3. How we disclose User information

We only disclose information collected in limited circumstances. We do not disclose the personal information of Students to third parties for marketing or promotional purposes.

While the Games permit Student Users to send messages to each other, Student Users are unable to send personal information using this messaging function. Messages that Student Users send in the in-Game messaging function must be selected from a predetermined list. The list of messages that Student Users may choose from is pre-approved by Prodigy and does not include personal

information. Prodigy does not retain messages sent between Student Users.

We disclose User information to third parties as follows:

- **Where a Student User account is linked to a Parent or Teacher User, that Student User's information will be disclosed to the Parent or Teacher User.**
- **To affiliates of Prodigy for the purposes described in this Privacy Policy.**
- **To inform or support the consideration, negotiation, or completion of a possible merger, sale, financing, or transfer of all or a portion of our**

business to another entity. If some or all our assets are acquired or otherwise transferred or licensed, including in bankruptcy, Prodigy shall take reasonable steps to subject such acquirer to the same commitments stated under this Privacy Policy.

- **Where you have instructed us to, for example to support inquiries either at your direction or with your informed consent.**
- **As we believe to be necessary and appropriate to comply with applicable laws and regulations; to comply with legal process; to respond to**

requests from governmental authorities; to detect violations of and enforce our Terms of Use; to protect the security of the Services; to protect the rights, privacy, property, or safety of Prodigy, you, or others; and to allow us to pursue any available remedies or to limit damages that we may sustain.

We also disclose the categories of personal information listed below to the following categories of third parties that perform certain services to us for our business purposes, provided those service providers agree to safeguard

the information, keep it confidential, and use it only for the purposes permitted by our agreements:

- **We disclose *identifiers* to: parties that assist with our business communications; data analytics providers; hosting services; payment processors; ad networks; social networks; sales and marketing tool providers; providers of product infrastructure tools; and providers of finance and accounting tools.**
- **We disclose *commercial information* to: data analytics providers; hosting services; payment**

processors; and providers of finance and accounting tools.

- **We disclose *network activity information* to: data analytics providers; hosting services; and providers of product infrastructure tools.**
- **We disclose *location information* to: data analytics providers; hosting services; and sales and marketing tool providers.**
- **We disclose *employment information* to: parties that assist with our business communications; data analytics providers; hosting services; sales and marketing tool**

providers; and providers of finance and accounting tools.

- **We disclose *inferences* that we may draw based on the information we collect to: data analytics providers and hosting services.**

As described above, we also allow third-party advertising and social networking providers to collect information – in particular, unique online identifiers – about individuals who visit areas of the Services that are not directed to Student Users to deliver, tailor, and measure the effectiveness of advertising to Parents and Teachers. The collection of this information may be considered a "sale" or "sharing" with these third parties, or "targeted

advertising," under applicable privacy laws.

4. How we protect User information

The User information we collect is stored and processed in environments designed to allow only authorized individuals to access the infrastructure where this information is stored. Because we understand and respect the trust placed in us to properly protect your information, Prodigy takes great care to maintain commercially reasonable standards of data security and protection, and continues to implement those measures for our infrastructure where User information is stored.

Prodigy and its service providers maintain strict administrative, technical, and physical measures designed to safeguard the information we process. We use industry-standard SSL encryption when collecting or transferring your information. Other safeguards include but are not limited to data encryption, firewalls, multi-factor authentication for our personnel with access to your information, and physical-access controls.

You can protect against unauthorized account access by selecting and protecting passwords appropriately, including using unique, multi-character passwords, ensuring devices are only accessed by those authorized

to use them, and taking care to sign out of online accounts (not just Prodigy, but all online accounts) after you or your Student Users are finished using them. Access to information associated with User accounts is limited to those Prodigy staff members who require such access to support our Services, who are designated and trained to maintain the security and confidentiality of User information.

Prodigy also maintains policies and practices which are designed to protect your personal information, including internal policies and procedures that define the roles and responsibilities of our employees throughout the information life cycle,

procedures for handling privacy-related inquiries and Users' rights regarding their personal information, and a framework governing the retention and destruction of personal information.

5. Users' rights regarding their information

Access, Correction, or Deletion of Information

Prodigy gives the ability to Teacher and Parent Users to access, correct or delete their personal information maintained by Prodigy and to withdraw their consent where provided, subject to legal or contractual restrictions.

Personal information can be accessed and changed by contacting our customer support. You also can access and review certain account-related details by logging into your online account.

Teacher and Parent Users, as well as educational institutions represented by a Teacher User, also may contact our customer support at any time to request access to, deletion of, or correction of any personal information we have collected from or about Student Users associated with their account, including a request to us to cease collecting personal information from those Student Users. Please be aware a request to delete or cease collecting personal information

or withdrawal of consent may lead to closing of the relevant User's account or the inability to use the products or Services or certain portions of the products or Services.

When a correction, deletion or other change to Student User personal information is requested and validated, Prodigy will effect the change as soon as reasonably practicable and in accordance with privacy laws.

When a Teacher User (or the educational institution represented by the Teacher) requests deletion of a Student User's personal information, we will remove that Student's link to the Teacher, and then take the following steps depending on whether the Student is

linked to another Parent or Teacher, unless otherwise required by law:

- **If the Student is linked to a Parent or other Teacher, we will retain the link to the Parent or other Teacher to allow them to continue to oversee the Student's use of that account.**
- **If the Student User is not linked to another Parent or Teacher, we will remove from the Student's account all personally identifiable information, as defined under the Family Educational Rights and Privacy Act (FERPA). The Student will then be able to continue to use the Services without**

any associated personally identifiable information.

Advertising & Your Choices

As described above, in certain instances Prodigy uses third-party partners to deliver, tailor, and measure the effectiveness of interest-based advertising to visitors to the areas of our Services that are not directed to Students. For example, when Parents or Teachers visit third-party websites and applications, our third-party providers may deliver Prodigy ads based on visits to areas of the Services that are not directed to Students. To learn more about interest-based advertising and how you can opt-out or limit some online advertising and

tracking, you may wish to review the following tools and options:

- **Network Advertising Initiative (NAI) at http://www.networkadvertising.org/choices.**
- **Digital Advertising Alliance (DAA) at www.aboutads.info/choices and http://youradchoices.com/appchoices and the mobile AppChoices app.**
- **Digital Advertising Alliance of Canada (DAAC) at https://youradchoices.ca/ and https://youradchoices.ca/en/appchoices and the mobile AppChoices app.**

- **Apple operating system (iOS) settings on your mobile device, select “limit ad tracking.”**
- **Android operating system settings on your mobile device, select “opt-out of interest-based ads.”**

Opting Out of Email Communications

You can opt out of receiving commercial or promotional emails from Prodigy by following the unsubscribe instructions indicated in the email and manage your communication preferences by contacting customer service. Prodigy communication preferences can be managed through our preference center, available through a link in the

footer of our commercial or promotional emails, through which Users can specify which types of communications they would like to receive.

California, Colorado, Connecticut, Utah, and Virginia Privacy Rights

The laws of California, Colorado, Connecticut, Utah, and Virginia also grant the residents of those states certain rights regarding the collection and use of their personal information. This section does not apply to Student personal information we process on behalf of an educational institution customer, either pursuant to contractual restrictions or through a Teacher Account, to process the information solely

on behalf of the institution as an educational service provider.

Subject to certain limitations and differences between the states, residents of these states have the following rights:

- **Right to know/access. Depending on your state of residence, you may have the right to know/confirm and/or access/receive in a portable format information about the categories and specific pieces of personal information we have collected about you, as well as the categories of sources from which such information is collected, the purpose for collecting such**

information, and the categories of third parties to whom we disclose such information. You also have the right to know if we have sold or disclosed your personal information.

- **Right to delete. You have the right to request the deletion of your personal information, subject to certain exceptions.**
- **Right to correction. You have the right to request that we correct inaccuracies in the personal data that we process.**
- **Right to opt out. You have the right to opt out of any “sales” or “sharing” of your**

personal information or the use of your personal information for “targeted advertising,” as those terms are defined under applicable state law. Note that while Prodigy does not monetize the personal information of any User of the Services by providing it to a third party in exchange for money (except in the context of a potential sale of the company), California law has a broader definition of the terms “sell” and “share” which includes making user information available to a third party for the purposes of targeted advertising. As

described above, when we work with our advertising partners, we allow them to collect information about individuals who visit areas of the Services that are not directed to Student Users in a way that would be considered a “sale” or “sharing” under California law, or “targeted advertising” under other state laws. These individuals can direct us to stop allowing the collection of their information in this way by opting out of cookies through our cookie preference center, accessible within the footer of our website at

prodigygame.com. By contrast, Prodigy does not sell, lease, target advertisements based on, or otherwise trade for value any personal information of Student Users, including within the Games.

- **Right to not be discriminated against. You have the right to be free from discrimination for exercising these rights. Please note that if the exercise of these rights limits our ability to process personal information we may no longer be able to provide you with our products and services.**

If you are a resident of one of these states and would like to

exercise any of these rights, please submit an email request to privacy@prodigygame.com with the subject line, “State Law Rights Request,” and indicate your state of residence. We may need to verify your identity before processing your request, which may require additional personal information from you, or that you log into your Prodigy account. In certain circumstances, we may decline or limit the scope of our compliance with your request, particularly where we are unable to verify your identity or locate your information, or as permitted by law. Depending on where you reside, you may also have the right to appeal our decision to decline or limit the scope of our compliance with your request by further contacting us at

privacy@prodigygame.com and explaining the nature of your appeal.

Depending on where you reside, you may also be able to use an authorized agent to act on your behalf to submit requests to exercise your rights. If you are submitting a request through an authorized agent, the authorized agent must provide us with your signed written permission stating that the agent is authorized to make the request on your behalf. We may also request that any authorized agents verify their identity and may reach out to you directly to confirm that you have provided the agent with your permission to submit the request on your behalf.

Users in the European Economic Area (EEA), United Kingdom, and Switzerland

If you are a resident of the EEA, UK, or Switzerland, the following information applies with respect to personal information (or personal data) collected through your use of our Services. As noted above, Prodigy processes personal information consistent with our disclosures in this Privacy Policy.

We process personal information on the following legal bases:

- **With your consent**
- **As necessary to Prodigy to perform its**

obligations under any agreement for Services

- **As necessary for our legitimate business interests to provide the Services where those interests do not override your fundamental rights and freedoms related to data privacy.**

Note, the information we collect may be transferred, stored, and processed in Canada and the United States or any other country where we or our processors maintain offices. We will work to make transfers of personal information to a third country or an international organization subject to appropriate safeguards under applicable law.

You are entitled to the rights under Chapter III of the EU General Data Protection Regulation and the UK GDPR, or Section 2 of the Swiss Federal Act on Data Protection concerning the processing of your information, which includes rights to access, correct, delete, restrict or object to our use of, or receive a portable copy of your personal information. You also have a right to lodge a complaint with your local data protection regulator. To make a request or otherwise exercise your rights, please contact us at privacy@prodigygame.com. To honor such a request, we will need to verify your identity and residency, which may require additional supporting information.

6. iKeepSafe and Prodigy's Work on Children's Information Privacy

In our commitment to protect the privacy of children, Prodigy has been certified by iKeepSafe, an FTC-approved COPPA Safe Harbor program. Prodigy does not ask for or require children to provide personal information beyond that which is reasonably necessary to support the operation of Prodigy's Services. Information collected from our Student Users is never disclosed for third-party advertising or any kind of behaviorally-targeted advertising. For information on how consumers can ask questions or file complaints

related to Prodigy's Privacy Policy and practices, please email COPPAPrivacy@ikeepsafe.org.

In addition, Prodigy has been granted the iKeepSafe Privacy California Student Badge, signifying our Services have been reviewed and approved for having reasonable policies and practices surrounding the processing of personal information from children consistent with each of the following program guidelines:

- **The Children's Online Privacy Protection Act (COPPA)**
- **The Family Education Rights and Protection Act (FERPA)**

- The Student Online Personal Information Protection Act
- California AB 1584 — Privacy of Pupil Records: 3rd-Party Digital Storage & Education Software (California Education Code section 49073.1).

7. Storage and Retention of User Information

Information collected through the Services may be transferred, stored, and processed in Canada and the United States or any other country where we, or affiliates, or our processors maintain offices, which may not provide the same level of protection for

your personal information as your country, state, or province of residence, in which case it will be subject to and may be available to the government under the laws of that jurisdiction, including law enforcement, regulatory, and national security authorities.

We retain your personal information for as long as we have a relationship with you, although we retain the right to delete User accounts after a period of inactivity. After our relationship has ended, we also may retain your personal information for as long as required by law or to investigate or defend against potential legal claims.

8. Updates to this Policy

If we update this Privacy Policy, we will notify you by posting a new Privacy Policy on this page and updating the Last Modified date at the bottom of this Privacy Policy. If we make any changes that materially change the ways we process or protect your information going forward, we will provide additional notification of changes. If we make any revisions that materially change the ways in which we use or disclose the information previously collected from you through the Services, we will give you the opportunity to consent to such changes before applying them to that information.

9. How to contact us

If you have questions or concerns regarding the way in which your personal information has been used, please contact our privacy officer at privacy@prodigygame.com, send a ticket in to our customer support team, contact us by mail at 226 Wyecroft Rd., Oakville, ON, L6K 3X7, or call us at 1 866 585 4655.

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